

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 24-23

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SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,  
LTD. ,

RESPONDENT.

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**JOINT STATUS REPORT**

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Pursuant to the June 27, 2025 Order, Complainant, Samsung Electronics America, Inc. (“SEA”) and Respondent, HMM Co., Ltd. f/k/a Hyundai Merchant Marine Co., Ltd. (“HMM”) (collectively the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report.

The Parties have now entered into a ESI Protocol for the production and handling of electronically stored information. The ESI Protocol requires the parties to seek an Order pursuant to F.R.Civ.P. 502(d) regarding the inadvertent production of attorney-client privileged materials. The Parties jointly attach a draft 502(d) Order for Your Honor’s consideration.

The Parties each report on their respective discovery processes as follows:

**1. Claimant Samsung Electronics America, Inc.**

In regard to SEA's discovery efforts, we submit the following information:

*a. The number of custodians searched by each party and any custodians remaining to be searched:* SEA searched 20 custodians and none remain to be searched.

*b. The volume of documents/ESI returned from those searches:*

i. Total documents collected BEFORE de-duplication: 15,154,378

ii. Total documents collected AFTER de-duplication: 5,256,808

*c. The volume of documents/ESI reviewed:* 776,875

*d. The volume of documents/ESI produced:*

i. SEA's First Production on July 3, 2025: 164,922 documents

ii. SEA's Second Production on July 9, 2025 deadline: 388,954 documents

*e. Any obstacles encountered in reviewing or producing documents/ESI:* Addressing numerically the volume of documents produced does not adequately capture the undertaking to meet the Presiding Officer's discovery deadline of July 9. For the 388,954 documents produced just before midnight on the Wednesday cut-off, it constitutes 2,354,037 pages. The bates range is SEA\_HMM-0518849 - SEA\_HMM-2872885. Nearly 3 million pages of materials was just produced to HMM, accounting for the more than 500,000 pages of documents produced on the evening of July 3 to get a first tranche of documents out and clear the ediscovery team to process the massive amount of additional data needed for July 9. Merely processing this volume of documents, after completion of review in preparation for production, takes about 24 hours from final sign-off and requires a number of ediscovery specialists and associates. While preparing for the productions, SEA spent hours imaging and re-imaging email documents with large Excel charts and tables inserted, along with some materials that were in another language.

*f. Anticipated number of depositions for each party and any obstacles related to scheduling those depositions:* SEA is not yet in a position to respond fully to this question. HMM's production of documents and data consisted of an initial batch of 90,000 pages on July 7, 2025. Access to the HMM production received on July 7 took two days and the processing of the data is still underway by SEA as the 131GB size of HMM's document production consists of loose PDFs and XLS files, with no emails, being produced in color. As such, the deposition estimates and matters posed in the June 20, 2025 joint status report remain the case now. SEA will take depositions of HMM personnel in Korea and domestically, and estimates the total to be between 5-10 witnesses, along with a corporate 143(b)(6) witness. While SEA will defend witnesses that are located throughout the United States, obstacles in starting depositions now are considerable. HMM's status report submission makes plain it has not completed its domestic review of HMM documents and the scope and timing of international document work being completed is uncertain. In both respects, no timeline for the rolling production of documents, let alone final production, has been provided. When the documents are produced, SEA will need to assess how many HMM documents are in Korean and will need translation. Once that is complete, the parties will need to determine tranches of time for depositions domestically and abroad.

## **2. Respondent HMM Co., Ltd.**

HMM has been actively responding to Complainant's discovery demands ("Demands"). The location and type of data sought by the Demands can be broken down into three general categories: (1) system-generated data, such as bills of lading and invoices; (2) email and similar ESI possessed by HMM custodians in the U.S. (the "U.S. Custodians"); and (3) email and similar ESI possessed by HMM custodians in Korea (the "Korean Custodians"). Different and extensive efforts have been undertaken to date in order to obtain information from each of these sources.

The total email and other accounts of the U.S. and Korean Custodians have been searched for documents responsive to the demands, with approximately 5TB of potentially responsive data identified thus far and held by 18 separate custodians. To clarify the scale of this data, our eDiscovery colleagues estimate that one TB of data is equivalent to approximately 5 million pages, assuming the ESI is comprised of emails.

(i) Shipment Data

The Demands essentially seek all documents related to shipments to SEA commencing in 2020. This includes documents such as bills of lading, invoices, and database records. During the period searched for, HMM made a change to its systems from GAUS to COMPASS, which required HMM to search two separate systems, one of which consisted of archived files on a system no longer in use. The volume of documents searched to locate responsive documents was substantial because HMM transported millions of shipments around the world during the relevant time period. HMM has searched its records and identified and produced 93,902 pages of responsive documents, consisting of bills of lading with associated freight invoices, invoices for detention and demurrage, and numerous associated database records. HMM has also produced the underlying service contracts and related amendments.

(ii) ESI Custodians located in the U.S.

HMM has identified nine potential U.S. Custodians. HMM has obtained the ESI from all the U.S. Custodians and searched it for possibly responsive documents. This data comprises approximately 3.5 TB and is in the process of being migrated to the e-Discovery platform where it is undergoing a rolling review. Again, for the purpose of characterizing the scope of the work that will be required, review of this volume of emails in hard copy would take many work-years

of time. To speed up production, the parties have agreed to certain mechanisms in the ESI Protocol that will facilitate the use of technology-assisted review, including by AI, in order to quickly identify responsive documents. HMM notes that this technology must “learn” what it is looking for, and the results must be manually reviewed for quality and consistency, both of which are time consuming tasks. This process is well underway and test batches have been reviewed, but the U.S. ESI custodians emails must still be reviewed.

(iii) ESI Custodians located in Korea

As noted in the June 9, 2025, Initial Status Report, Korean privacy law prevents the transmission of personally identifiable information (PII) without written consent. HMM has obtained an opinion and guidance on this point from Lee and Ko, a large and reputable Korean law firm with experience in this area. The disclosure of Korean-sourced ESI required HMM approach the nine potential Korean Custodians for the purpose of obtaining their consent to release of this data and complete documentation which confirms their agreement to its release. HMM has now obtained the requisite forms of consent from Korean counsel and has received executed copies back from all of the Korean ESI custodians.

The emails and other records of the Korean Custodians consist of approximately 1.5TB of data. These records are currently being searched for potentially responsive documents. Possibly responsive ESI will then be transferred to the e-Discovery platform for review using the same technology-assisted review processes developed for the review and production of the ESI located in the U.S.

(iv) Obstacles Encountered in Document Review and Production

Nearly all of the documents in this case consist of ESI. HMM notes that in addition to the legal and technical hurdles with locating, searching and producing ESI located in Korea, many of the e-mails are in Korean and require translation. None of the counsel in this matter are fluent in written Korean, so this adds an additional level of complexity to the review. The parties, through the ESI Protocol, have agreed to use AI-assisted translation in the first instance in order to speed up the review and production of these materials. Nevertheless, this data must still be processed and reviewed, such that ESI located in Korea will likely take the longest to review and produce.

The primary obstacle in reviewing and producing the ESI from the U.S. and Korean Custodians, other than language, is volume. With 18 total ESI Custodians identified holding approximately 5TB of data, even technology assisted review takes time. Moreover, in order for the production to be responsive to the Demands, the e-Discovery platform must be “trained” so that it can differentiate responsive documents from others. Once this has occurred, the results of the technology assisted review must be audited for accuracy, and in most cases additional training is required to reduce error rates to an acceptable level (generally considered 80% or better).

(v) Depositions

With respect to depositions, HMM has identified 6 possible SEA witnesses that HMM may depose. It is possible that the review of SEA’s document production will reveal other potential witnesses, but at this time HMM anticipates taking no more than 6 depositions of fact witnesses. It is unknown at this how many, if any, experts SEA will utilize, but HMM will want to depose any experts retained by SEA who offer any evidence in this matter. In similar cases, SEA and the respondents have each had 2 expert witnesses, one each on causation and damages. It is therefore anticipated that this case will involve 4 expert witnesses in total.

With respect to HMM's witnesses, and in partial further response to the Presiding Officer's request that the parties identify any difficulties encountered during discovery, many are native Korean-language speakers with varying degrees of fluency and, at least in the case of witnesses located in Korea, little to no experience with giving testimony. Accordingly, HMM anticipates that of the 18 possible witnesses HMM has identified, perhaps half will require a translator. In addition, because of the lack of familiarity with depositions in Korea, counsel expect that HMM's witnesses will require in person meetings and preparation to get them comfortable with testifying (it may seem trite to those who litigate for a living, but for the average lay witness testifying in case of this magnitude is a daunting and stressful experience). Counsel anticipate that they will be required to meet the Korean witnesses in person in Korea prior to the depositions, and that counsel will be asked to return to defend the depositions in person in Korea.

Counsel notes that there are several major holidays in Korea and the United States, as well as religious holidays, during the time period proposed for depositions in the revised proposed schedule, most notably National Foundation Day and the Chuseok Holiday, which run from October 3 to 9, 2025 and during which HMM's Korean employees will not be available. Moreover, both the Columbus Day and Veteran's Day holidays occur during this time period, as do the Jewish holidays of Rosh Hashanah (Sept. 22-24), Yom Kippur (Oct 1-2), Sukkot (Oct. 6-13) and Simchat Torah (Oct. 13-15). Accordingly, of the approximately 45 business days between September 12 and November 14, 2025, there are actually only 28 business days available to take approximately 24 fact witness depositions, and counsel must travel to and from Asia at least once, and probably twice, during this time. The Presiding Officer is respectfully urged to consider these scheduling challenges in weighing the instant joint request for amendment of the Current Scheduling Order.

### 3. **HMM's Position on an Amendment of Scheduling Order**

The parties are actively engaged in and are making significant headway in reviewing and producing documents in this case. However, in a case involving \$100,000,000 in alleged liability, consisting of approximately 96,000 separate claims (which, under current precedent, must each be individually proven and defended), millions of emails and other documents, and 24 identified fact witnesses plus 4 anticipated expert witnesses, completing discovery within 150 days of service of the answer has regrettably proved impossible. Mindful of the Court's and the Parties' obligation to maintain a tight schedule even where the 150 day timeline cannot possibly be met, HMM proposes a modest 60 day extension of the remaining dates in the May 2, 2025 Scheduling Order as follows:

|                    |                                                                                                                                                                                                    |
|--------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| September 5, 2025  | Joint Status Report due                                                                                                                                                                            |
| September 12, 2025 | Complete document production                                                                                                                                                                       |
| September 12, 2025 | Expert-discovery phase begins                                                                                                                                                                      |
| November 14, 2025  | Complete fact depositions                                                                                                                                                                          |
| November 14, 2025  | Discovery closed                                                                                                                                                                                   |
| November 28, 2025  | Meeting to discuss Joint Prehearing Statement must be held by this date; hearing exhibits must be exchanged (see above)                                                                            |
| December 19, 2025  | Joint prehearing statement, objections to exhibits, motions <i>in limine</i> , motions for confidential treatment, and any other motions respecting the conduct of the hearing are due (see above) |
| January 6, 2026    | Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 AM                                                                                                       |

#### 4. **SEA's Position on an Amendment of Scheduling Order**

As substantial as SEA's production is already, a supplemental production is possible. SEA worked diligently to meet the July 9 deadline and assess data and information responsive to HMM's requests. The QA/QC process could result in the additional production of responsive information.

In regard to HMM's proposed amendment of the scheduling order, SEA cannot agree to extending all deadlines by 60 days because a substantial production of documents remains to be made by HMM. SEA is in the unenviable position of having undertaken considerable effort and expended considerable costs to provide a massive production of documents by the July 9 deadline and HMM will have the benefit of months on end to review and prepare its defense with that production while SEA waits for the production of a substantial amount of HMM information. SEA takes no position on how the scheduling order must be amended in light of HMM's status report disclosures because too much is unknown as to when SEA will receive important HMM communications and materials in connection with the 96,000 demurrage and detention charges at issue.

Dated: July 11, 2025

Respectfully Submitted,

**HOLLAND & KNIGHT LLP**

By: /s/ Christopher R. Nolan  
Christopher R. Nolan, Esq.  
Marisa Marinelli, Esq.  
31 West 52<sup>nd</sup> Street  
New York, NY 10019  
Telephone: (212) 513-3200  
chris.nolan@hklaw.com  
Marisa.marinelli@hklaw.com

Gerald A. Morrissey III, Esq.  
Kristine O. Little, Esq.  
800 17th Street N.W., Suite 1100  
Washington, D.C. 20006  
Telephone: (202) 955-3000  
gerald.morrissey@hklaw.com  
kristine.little@hklaw.com

*Counsel to Samsung Electronics  
America, Inc.*

**COZEN O'CONNOR**

By: /s/ Neil Quartaro  
Neil Quartaro, Esq.  
Christopher Raleigh, Esq.  
Joshua P. Stein, Esq.  
Kathryn Sobotta, Esq.  
175 Greenwich Street, 55th Floor  
3 WTC  
New York, NY 10007  
NQuartaro@cozen.com  
CRaleigh@cozen.com  
JStein@cozen.com  
KSobotta@cozen.com

*Counsel to HMM Co., Ltd. f/k/a Hyundai  
Merchant Marine Co., Ltd.*